No. 23-55431
Case No. 23-55431

IN THE UNITED STATES COURT OF APPEALS
In the United States Court of Appeals
FOR THE NINTH CIRCUIT
for the Ninth Circuit

B & L PRODUCTIONS, INC., et al.,

Plaintiffs-Appellants,
B & L PRODUCTIONS, INC., et al.,
*Plaintiffs-Appellants*,

GAVIN NEWSOM, in his official capacity as Governor of the State of California and in his personal capacity, et al.,
v.
GAVIN NEWSOM,
Defendants-Appellees,
in his official capacity as Governor of the State of California and in his personal capacity, et al.,
On Appeal from the United States District Court for the Southern District of
*Defendants-Appellees.*
California

D.C. No. 3:21-cv-01718-AJB-DDL; Honorable Anthony J. Battaglia

On Appeal from the United States District Court
for the Southern District of California
Case No. 3:21-cv-01718-AJB-DDL
Honorable Anthony J. Battaglia

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December 1, 2023

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# INTRODUCTION

As Appellants have shown, the district court evaded its duty to fully analyze whether AB 893 comports with the text and history of the Second Amendment as it was required to do under the Supreme Court's recent decision in *New York State Rifle & Pistol Ass'n v. Bruen*, __ U.S. __, 142 S. Ct. 2111 (2022). Instead, the court casually dismissed Appellants' claims offhand because they had not alleged the total destruction of their right to acquire arms. As for the court's treatment of Appellants' First Amendment claims, and even setting aside (but not waiving) their pure speech claims, the district court failed to fully apply the commercial speech doctrine to Appellants' claims as required by *Central Hudson Gas & Electric Commission v. Public Services Commission*, 447 U.S. 557 (1980). Both are plain errors that call for summary reversal.

Appellant's equal protection claims are, at a minimum, cross-relevant to their First Amendment claims on a theory of animus. The differential treatment by state actors on a matter of fundamental rights is actionable under the Equal Protection clause. Because unequal treatment is a question of fact, and because this claim was dismissed on a Rule 12 motion, the trial court committed reversible error.

Aside from introducing argument and evidence that was not considered by the district court below and improperly injecting factual disputes into this appeal of Rule 12 dismissal of Appellants' claims, the State's responsive brief does little to rebut

# ARGUMENT

## I. THE DISTRICT COURT'S RULE 12 DISMISSAL OF APPELLANTS' WELL-PLED SECOND AMENDMENT CLAIM IS REVERSIBLE ERROR

### A. The District Court Improperly Relied on *Texeira* to Short-circuit the Text-and-History Based Analysis Required Under *Bruen*

As Appellants' Opening Brief explains, under the Supreme Court's recent decision in *Bruen*, 142 S. Ct. at 2117-18, it is no longer appropriate for courts to subject Second Amendment claims to multi-step, interest-balancing tests, like intermediate scrutiny. A.O.B.16. Of course, the right to keep and bear arms must be implicated. *Bruen*, 142 S. Ct. at 2129. But, in most cases, this requires no in-depth analysis. The "plain text" of the Amendment controls. If the restricted conduct is covered by the Second Amendment's "plain text," the conduct is presumptively protected, *id.* at 2126, 2129-30, and "the government must affirmatively prove that its firearms regulation is part of the historical tradition that delimits the outer bounds of the right to keep and bear arms," *id.* at 2127.

It can hardly be disputed that the conduct Appellants seek to engage in at gun shows, including sales, is within the Second Amendment's "plain text." A.O.B.17-21. The operative complaint alleges that Appellants, as gun show attendees, vendors, and promoters, seek to engage in otherwise lawful activities related to commerce in firearms, ammunition, and firearm parts. 2-ER-135-41. "Because the Second Amendment protects the individual's right to keep and bear arms in self-defense, it also must protect the attendant rights of gun ownership that make keeping and bearing arms meaningful." *B&L Prods., Inc. v. Newsom*, No. 8:22-cv-01518, 2023 WL

the attendant rights of gun ownership that make keeping and bearing arms meaningful." *B&L Prods., Inc. v. Newsom*, No. 8:22-cv-01518, 2023 WL 7132054 *13 (C.D. Cal. Oct. 30, 2023).[1] This includes the right to acquire lawful firearms and ammunition, as this circuit's precedents have established. *See, e.g.*, *Teixeira*, 873 F.3d at 677-78 (discussing authorities acknowledging the right to acquire arms); *Jackson v. City & Cnty. of San Francisco*, 746 F.3d 953, 967-68 (9th Cir. 2014) (hollow-point ammunition). At a minimum, California's gun show ban *implicates* the right of acquisition.

The district court failed to hold the State to its burden under *Bruen* and refused to perform the required historical analysis, holding instead that Appellants' Second Amendment claim necessarily fails because they did not allege that AB 893 "amount[s] to a prohibition of" the right to acquire guns or ammunition. 1-ER-11. The State, arguing that this Court's en banc decision in *Teixeira* is still good law because its analysis was rooted in text, history, and tradition, argues that the district court got this right. Appellees' Br. ("A.B.") 16-17 (discussing *Teixeira v. County of Alameda*, 873 F.3d 670). The State is wrong.

First, *Teixeira*'s textual and history analysis was limited to its analysis of whether there is an independent right to *sell* firearms, not to whether there is a right to *acquire*

[1] Citing *District of Columbia v. Heller*, 554 U.S. 570, 629 (2008); *Jackson v. City & Cnty. of San Francisco*, 746 F.3d 953, 697 (9th Cir. 2014) (extending Second Amendment to the ammunition purchases because "without bullets, the right to bear arms would be meaningless"); *Teixeira v. County of Alameda*, 873 F.3d 670, 677 (9th Cir. 2017) (en banc) ("[T]he core Second Amendment right to keep and bear arms for self-defense wouldn't mean much without the ability to acquire arms.") (citing *Heller*, 554 U.S. at 617-18); *Boland v. Bonta*, No. 22-01421, 2023 WL 2588565, at *4 (C.D. Cal. Mar. 20, 2023) (preliminarily enjoining a California law preventing the "purchase [of] state-of-the-art handguns for self-defense" on Second Amendment grounds); *Renna v. Bonta*, No. 20-2190, 2023 WL 2848937 (S.D. Cal. April 3, 2023) (similar).

Appellees' Br. ("A.B") 16-17 (discussing *Teixeira v. County of Alameda*, 873 F.3d 670).

The State is wrong.

First, *Teixeira*'s textual and history analysis was limited to its analysis of whether there is an independent right to sell firearms, not to whether there is a right to acquire them. 873 F.3d at 682-90.[2] The Court summarily rejected *Teixeira*'s attempt to assert a "right to acquire arms on behalf of his potential customers," not because there was no textual or historical basis for claiming such a right exists, but because he had not shown that his customers' ability to acquire arms in the county had been completely snuffed out. *Id.* at 678-81. But tests requiring plaintiffs to prove that a challenged law imposes some arbitrarily severe burden or "meaningful" restriction, *Teixeira*, 873 F.3d at 680, on their Second Amendment rights have no place in a post-*Bruen* landscape—if they were ever appropriate. Insisting on such a showing deceptively smuggles burden and interest balancing into the analysis in direct conflict with *Bruen*'s (and *Heller*'s) clear commands. *See Bruen*, 142 S. Ct. at 2129-30 (discussing *Heller*, 554 U.S. at 634). The district court's rejection of *Bruen*'s text-and-history analysis in favor of *Teixeira*'s abrogated "meaningful[] restrict[ion]" test is reversible error.

What's more, in *Teixeira*, this Court held that "gun buyers have no right to have a gun store in a particular location, at least as long as their access is not meaningfully constrained." 873 F.3d at 680. *Bruen*'s "plain text" analysis does not support the rights at issue during the American Revolution, and it is a right guaranteed by the Second Amendment…." David B. Kopel, *Does the Second Amendment Protect Firearms Commerce?*, 127 Harv. J.L. & Pub. Pol'y 230, 234-35 (2014). That is not to say that no regulation on such conduct can survive judicial scrutiny. To be sure, *Heller* acknowledged the presumptive validity of at least some "laws imposing conditions and qualifications on the commercial sale of firearms." 554 U.S. at 626-27. But, "to uphold the constitutionality of a law imposing a condition on the commercial sale of firearms, a court necessarily must examine the nature and extent of the imposed condition." *United States v. Marzzarella*, 614 F.3d 85, 92 n.8 (3d Cir. 2010). If the sale of firearms fell outside the Second Amendment, "it would follow that there would be no constitutional defect in prohibiting the commercial sale of firearms. Such a result would be untenable under *Heller*." *Id.*

[2] To the extent that *Teixeira* relied on "history and tradition" to hold that there is no right to sell arms, it was simply wrong. "The right to commerce in firearms was one of the rights at issue during the American Revolution, and it is a right guaranteed by the Second Amendment…." David B. Kopel, *Does the Second Amendment Protect Firearms Commerce?*, 127 Harv. J.L. & Pub. Pol'y 230, 234-35 (2014). That is not to say that no regulation on such conduct can survive judicial scrutiny. To be sure, *Heller* acknowledged the presumptive validity of at least some "laws imposing conditions and qualifications on the commercial sale of firearms." 554 U.S. at 626-27. But, "to uphold the constitutionality of a law imposing a condition on the commercial sale of firearms, a court necessarily must examine the nature and extent of the imposed condition." *United States v. Marzzarella*, 614 F.3d 85, 92 n.8 (3d Cir. 2010). If the sale of firearms fell outside the Second Amendment, "it would follow that there would be no constitutional defect in prohibiting the commercial sale of firearms. Such a result would be untenable under *Heller*." *Id.*

ever appropriate. Insisting on such a showing deceptively smuggles burden and interest construing the right so narrowly. But even if it did, *Teixeira*'s straw-man description of balancing into the analysis in direct conflict with *Bruen*'s (and *Heller*'s) clear commands. a gun buyer's purported "right to have a gun store in a particular location" conflates *See Bruen*, 142 S. Ct. at 2129-30 (discussing *Heller*, 554 U.S. at 634). The district court's the restricted conduct with the restriction itself. This is a critical error. The *restricted* rejection of *Bruen*'s text and history analysis in favor of *Teixeira*'s abrogated *conduct* is not the sale and purchase of firearms at a gun store (or gun show) in a "meaningful[] restrict[ion]" test is reversible error. preferred place, but the sale and purchase of firearms, full stop. The *restriction* is a ban on that conduct in certain places. Because the "plain text" protects the individual right

What's more, in *Teixeira*, this Court held that "gun buyers have no right to have to acquire firearms, ammunition, and firearm parts, the government must prove that a gun store in a particular location, at least as long as their access is not meaningfully its "place" restriction is "consistent with this Nation's historical tradition of firearm constrained." 873 F.3d at 680. *Bruen*'s "plain text" analysis does not support construing regulation," *Bruen*, 142 S. Ct. 2126. If it can, the restriction would be constitutional— the right so narrowly. But even if it did, *Teixeira*'s straw-man description of a gun not because there is no "right to have a gun store in a particular location," but because buyer's purported "right to have a gun store in a particular location" conflates the the government had some historical justification for restrictions on sales in certain restricted conduct with the restriction itself. This is a critical error. The restricted spaces.

Finally, even if one accepts that Teixeira were correct (when it was decided and conduct is not the sale and purchase of firearms at a gun store (or gun show) in a is still good law after *Bruen*, it is not helpful to the resolution of Appellants' Second preferred place, but the sale and purchase of firearms, full stop. The restriction is a ban Amendment claims, as the Central District of California recently observed in the on that conduct in certain places. Because the "plain text" protects the individual right nearly identical *B&L Orange County* case. *See B&L Orange Cnty.*, 2023 WL 7132054, to acquire firearms, ammunition, and firearm parts, the government must prove that its *14-15. The *Teixeira* en banc panel dismissed the plaintiffs' Second Amendment claim "place" restriction is "consistent with this Nation's historical tradition of firearm because they had not alleged that the restriction prevented them from acquiring regulation," *Bruen*, 142 S. Ct. 2126. If it can, the restriction would be constitutional— firearms anywhere in the county. 873 F.3d at 678. "The Ninth Circuit reached that not because there is no "right to have a gun store in a particular location," but because conclusion because there were several other gun stores within the county at which the government had some historical justification for restrictions on sales in certain residents could purchase firearms and ammunition, including one gun store that was spaces. '600 feet away from the proposed site of Teixeira's planned store.'" *B&L Orange Cnty.*, 2023 WL 7132054, *14 (quoting *Teixeira*, 873 F.3d at 679).

Finally, even if one accepts that *Teixeira* were correct when it was decided and is still good law after *Bruen*, it is not helpful to the resolution of Appellants' Second Amendment claims, as the Central District of California recently observed in the nearly identical *B&L Orange County* case. *See B&L Orange Cnty.*, 2023 WL 7132054, *14-15. The *Teixeira* en banc panel dismissed the plaintiffs' Second Amendment claim because they had not alleged that the restriction prevented them from acquiring firearms anywhere in the county. 873 F.3d at 678. "The Ninth Circuit reached that conclusion because there were several other gun stores within the county at which residents could purchase firearms and ammunition, including one gun store that was '600 feet away from the proposed site of Teixeira's planned store.'" *B&L Orange Cnty.*, 2023 WL 7132054, *14 (quoting *Teixeira*, 873 F.3d at 679).

But here, as in *B&L Orange County*, Appellants allege several facts that distinguish this case from *Teixeira*. *See* 2-ER-135, 156-59; *see also B&L Orange Cnty.*, 2023 WL 7132054, *14-15. For instance, they allege that gun shows are different from gun stores because they are "cultural marketplaces," 2-ER-157, where participants "exchange ... products and ideas, knowledge, services, education, entertainment, and recreation," 2-ER-156-57. In short, a gun show is a "celebration of America's 'gun culture' that is a natural and essential outgrowth of the constitutional rights that flow from the Second Amendment." 2-ER-156. Participating in that culture, not just exchanging guns for money, is an important part of the gun shows. 2-ER-158. Appellants also allege that they and many others attend gun shows "to

But here, as in *B&L Orange County*, Appellants allege several facts that distinguish this case from *Teixeira*. *See* 2-ER-155, 156-59; *see also B&L Orange Cnty.*, 2023 WL 7132054, *14-15. For instance, they allege that gun shows are different from gun stores because they are "cultural marketplaces," 2-ER-157, where participants "exchange . . . products and ideas, knowledge, services, education, entertainment, and recreation," 2-ER-156-57. In short, a gun show is a "celebration of America's 'gun culture' that is a natural and essential outgrowth of the constitutional rights that flow from the Second Amendment." 2-ER-156. Participating in that culture, not *just* exchanging guns for money, "is an important reason people attend B&L gun shows." 2-ER-158. Appellants also allege that they and many others attend gun shows "to exchange knowledge with experienced dealers and firearm enthusiasts that they *cannot get anywhere else*." 2-ER-158 (emphasis added).

And, Appellants claim, that "[b]ecause of its large size and unique urban location, the Fairgrounds is a unique, publicly owned venue. There is no other public or private venue of similar size in the area." 2-ER-159. Similarly:

> Because California prohibits the building of similar venues within their districts as a way to prevent competition for available space, there are no venues in the area that offer comparable space and parking needed for gun show events. Plaintiff Crossroads has thus been unable to find a suitable alternate location to the Fairgrounds. 2-ER-175.

Taking these factual allegations as true—as the Court must on a motion to dismiss—it is clear that *Teixeira* is not on point. Indeed, to paraphrase *B&L Orange County*, "the instant action is distinct because there is no alternative gun show in [the district], let alone within '600 feet' of the [Del Mar] Fairgrounds," 2023 WL 7132054, *15 (citing *Teixeira*, 873 F.3d at 679). The existence of brick-and-mortar gun stores within San Diego county makes no difference because California "fail[s] to identify how the general experience of [Appellants'] gun shows can be replicated by alternative forums in the area." *Id.* at *14 (footnote omitted).

Because Appellants have alleged that AB 893 restricts conduct protected by the "plain text" of the Second Amendment, *Bruen* demands that California prove that the ban is part of the history and tradition of firearm regulation in this country dating back to the Founding. As explained below, and admitted by the government, A.B.29, n.9, this

Fairgrounds, discriminatorily excluding Appellants from that public forum, this Court raises a factual question that the district court cannot decide on a motion to dismiss. Nor can this Court decide the issue, in the first instance, on appeal. *See* A.B.29, n.9.

Turning once more to the serious treatment afforded to this significant constitutional issue by the *B&L Orange County* court: "[B]ecause the Court concludes that Plaintiffs are likely to prevail on their First Amendment claims that Defendants are 'engaging in viewpoint discrimination,' it concludes that Plaintiffs are also likely to prevail on their Equal Protection claim 'for differential treatment that trenched upon a fundamental right.'" *Id.* (quoting *OSU*, 699 F.3d at 1067). This Court should afford similar treatment to Appellants' claim.

## CONCLUSION

For these reasons, the district court committed reversible error by dismissing the case under Rule 12. The Court should reverse that order and remanded for further proceedings.

Dated: December 1, 2023

Respectfully submitted,

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CONCLUSION

For these reasons, the district court committed reversible error by dismissing the case under Rule 12. The Court should reverse that order and remanded for further proceedings.

Respectfully submitted,

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December 1, 2023

# STATEMENT OF RELATED CASES
## UNITED STATES COURT OF APPEALS
## FOR THE NINTH CIRCUIT

9th Cir. Case Number(s) 23-55431

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No. 23-3793, *B&L Productions, Inc., et al., v. Newsom, et al.* (This related case, filed on November 27, 2023, is an interlocutory appeal of an order granting plaintiffs' motion for preliminary injunction and enjoining the enforcement of Senate Bill 264 (applicable to the Orange County Fair & Event Center) and Senate Bill 915 (applicable to all state-owned property), two state laws that are nearly identical to the law challenged in this case. After extensive briefing, including two rounds of supplemental briefing, and a two-hour hearing, the Central District held that the plaintiffs (including several appellants in this case) were likely to prevail on the merits of their First and Second Amendment claims. Pursuant to this Court's earlier direction, Appellants intend to renew their request to have these cases heard together.)

1. ***B&L Productions, Inc., et al., v. Newsom, et al.*, 9th Cir. Case No. 23-3793.** This related case, filed on November 27, 2023, is an interlocutory appeal of an order granting plaintiffs' motion for preliminary injunction and enjoining the enforcement of Senate Bill 264 (applicable to the Orange County Fair & Event Center) and Senate Bill 915 (applicable to all state-owned property), two state laws that are nearly identical to the law challenged in this case. After extensive briefing, including two rounds of supplemental briefing, and a two-hour hearing, the Central District held that the plaintiffs (including several appellants in this case) were likely to prevail on the merits of their First and Second Amendment claims. Pursuant to this Court's earlier direction, Appellants intend to renew their request to have these cases heard together.

s/ Anna M. Barvir — December 1, 2023

Signature — Date

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**UNITED STATES COURT OF APPEALS**
**FOR THE NINTH CIRCUIT**

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s/ Anna M. Barvir — December 1, 2023

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